



File No.: EXP202414105

RESOLUTION OF RIGHTS PROCEDURE

Having reviewed the complaint registered on August 26, 2024, with this Agency and having carried out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: A.A.A. (hereinafter, the complainant) exercised the right of Access against the DEPARTMENT OF EDUCATION, VOCATIONAL TRAINING AND UNIVERSITIES OF CANTABRIA (hereinafter, the complained party) without receiving the legally established response to their request.

The complainant states that, due to the incidents of bullying suffered by their minor child at the Municipal Sports Center of Requejada (Polanco, Cantabria), a protocol against violence was applied in September 2023, in which both the complained department and the Town Hall intervened.

They indicate that, on June 28, 2024, they requested access to their child's data related to the bullying protocol affecting the minor from the complained party, without having received a response up to the time of filing the complaint with the AEPD.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the complained party for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

THIRD: The result of the transfer procedure indicated in the previous Fact did not allow for the satisfaction of the complainant's claims. On November 26, 2024, the complaint was admitted for processing. By agreement of the Spanish Agency for the Protection of Data dated March 5, 2025, the complained party was granted a hearing period, to present any allegations they deemed appropriate within fifteen working days, summarizing the following allegations:

"FIRST. - A.A.A. addressed the Data Protection Delegate of Educational Centers on June 28, 2024, requesting information related to the processing of their child's personal data contained in the bullying protocol opened at the educational center ***CENTER.1. This request for information should have been directed to the Data Protection Delegate of the Government of Cantabria, not to that of educational centers, since, although it is true that the protocol was opened in an educational center, that center is private in nature and the participation of the Department of Education, Vocational Training and Universities is limited to the role conferred by the 'Protocol of Action for Educational Centers in the Event of a Possible Bullying Situation', which is to receive information about the development of the protocol that the center's management communicates to the Educational Inspection Service and the Coexistence Unit.

According to Article 1.6 of Decree 79/2021, of September 30, which approves the Comprehensive Information Security Policy and the Competency Organization for the Protection of Personal Data of the Administration of the Autonomous Community of Cantabria, educational centers managed by the competent Department of Education are excluded from its scope of application; however, in this case, the action for which the complainant requests information has been developed by the Educational Inspection Service and the Coexistence Unit, so it falls within the scope of application of the aforementioned Decree and should have been directed to the Data Protection Delegate of the Government of Cantabria.

SECOND. - The communication from the Spanish Agency for the Protection of Data, dated October 15, 2024, with the subject 'Transfer of complaint and request for information', was received in the General Secretariat of the Department and forwarded to the Educational Inspection Service, dependent on the General Directorate of Quality and Educational Equity and Academic Organization, as the designated responsible for the processing recorded in the corresponding Activity Register, on October 16.

Simultaneously with the Agency's communication, on October 7, 2024, A.A.A. submitted to the

Department of Education, with Registration Number: 2024GCELCE330608, the same document that they had sent by email to the inbox dpdcentrodcentes@educantabria.es. In response to this request, ***POSITION.1 of education at the educational center ***CENTER.1, B.B.B., contacted A.A.A. directly and provided the requested information, although not in written form.

An report issued by ***POSITION.1 of Education, B.B.B., and ***POSITION.2, C.C.C., dated April 4, 2025, is attached.

THIRD. - Since the requested information was provided directly to A.A.A., it was considered that it was no longer necessary to respond to the request from the Spanish Agency for the Protection of Data, and therefore, no response was given to the communication of October 15, as it was understood that the complaint had lost its object.

FOURTH. - On March 31, 2025, A.A.A. addressed the Data Protection Delegate of the Government of Cantabria, again requesting data from the file, who is preparing the requested information to provide the corresponding written response.”

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FOURTH: After examining the document submitted by the responding party, it is transferred to the claiming party, so that, within a period of fifteen working days, they may formulate the allegations they deem appropriate, summarizing, in essence, the following allegations:

1.

“Lack of formal response to requests for access to personal data (art. 15 GDPR)

- Absence of delivery of the requested information: Contrary to what has been stated by the Ministry of Education of Cantabria, it is completely false that the requested information has been provided through the exercise of the right of access. I submitted two formal requests (on June 28, 2024, and October 7, 2024) requesting access to the personal data of my minor child within the framework of the bullying protocol. To date, I have not received any response, either written or verbal, to any of them. The Ministry has not provided any documents, nor copies of data, nor official communication, nor has it complied with any of the elements established in Article 15 of the GDPR (purposes of processing, recipients, retention, etc.). Therefore, the assertion that my request has been attended to is completely untrue and lacks documentary support.

- Falsehood of the alleged verbal attention: the only meeting was prior and due to our report of irregularities. The only occasion on which we coincided with personnel from the Education Inspection was on November 16, 2023, in a meeting held at our child's school, which both parents attended after sending an email on November 9 warning expressly of contradictions, absence of written response, and lack of clarity regarding the status of the bullying protocol. This meeting was convened by the school itself as a consequence of that email. In it, ***POSITION.1 of the area, ***POSITION.1, merely indicated that the educational protocol was posted on the website and that the school was acting in accordance with it, without providing any specific information about the processing of personal data, nor delivering any documents. We were not offered any verbal or written information about any data file or about the specific situation of the minor, and in fact, it was following that same meeting that we submitted the formal document on November 29, 2023, upon detecting further irregularities, with entry registration 2023GCELCE357783.

It is completely incoherent that it is now claimed that we were verbally provided with the requested information through the right of access when that right had not even been exercised yet, and it was precisely the lack of institutional response that motivated the initiation of the formal procedure before this Agency. To assert that this informal and prior meeting equates to a response in accordance with Article 15 of the GDPR is not only false but constitutes an attempt to prematurely close this complaint. No information has been provided to us, neither verbally in the context of exercising the right, nor in writing before or after.

- Express acknowledgment of the lack of management of the request: It is illustrative that the very Data

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has recently acknowledged that the access requests were not processed adequately. In its communication of April 2025, it admits that since October 2024, it has held the functions of data protection delegate in relation to the Ministry of Education, and that since then it is responsible for providing a response. It even adds that it is currently “preparing the requested information to provide the corresponding written response,” which confirms that to date no formal reply has been provided, despite the time elapsed. However, it is worth noting that my two access requests are prior to her appointment: the first was registered on June 28, 2024, and the second on October 7, 2024, in duplicate: it was submitted via the General Electronic Registry of the Government of Cantabria (registration 2024GCELC330608) and, simultaneously, also sent to the institutional mailbox dpccentrosdocentes@educantabria.es, which was listed as the official contact channel in the Records of Processing Activities. Despite this, there was no response through either channel. The most serious issue is that in the document sent to this Agency, the Ministry itself expressly acknowledges that it did not respond to the request of October 7, unilaterally assuming that the complaint had “lost its object.” This statement is false and reflects a deliberate intention not to comply with the right of access, despite being fully informed, with acknowledgment of receipt by mail and registered entry in the electronic headquarters. Attempting to justify this omission by claiming that the submission was to an “incorrect” mailbox is unfounded. As is documented, the address dpccentrosdocentes@educantabria.es was publicly listed in the institutional RATs as the contact for the Data Protection Delegate, even in highly sensitive treatments related to minors and protection situations. Therefore, the request was sent to the correct and known channels, and the lack of response reflects not confusion, but a fully conscious institutional omission. Ultimately, the Administration admits in writing the non-compliance with Article 15 of the GDPR, attempting to justify it belatedly after the intervention of this Agency, and outside of any legal deadline. This conduct, sustained for more than nine months and confirmed by the Ministry itself, constitutes a serious violation of the fundamental right of access and an unacceptable lack of diligence in the processing of a minor's data.

- Non-compliance with the AEPD's requirement and lack of cooperation: The Ministry of Education also incurs a serious lack of collaboration with the AEPD. In particular, it did not attend to or respond to the express request for information that this Agency directed to it on October 15, 2024, leaving it unanswered. As the Ministry itself acknowledges in the report submitted in this hearing process, after having provided certain information verbally to the complainant, they considered (incorrectly) that “it was no longer necessary to attend to the request of the Spanish Agency for Data Protection,” unilaterally understanding that “the complaint had lost its object.” Such a decision to ignore an official request from the AEPD lacks legal foundation and constitutes a breach of the duty of cooperation provided for in the GDPR.

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The refusal to cooperate with the control authority not only aggravates the violation of the claimant's rights but also constitutes an infringement in itself, classified in the data protection regulations as a serious or very serious act. Therefore, the assertion by the Ministry that the claimant “already received” the information is dismantled: there was no formal or complete delivery of the information in accordance with the law, and furthermore, the educational administration failed to fulfill its obligations of response and cooperation in this procedure. (Attached as annexes are copies of the access requests dated 28/06/2024 and 07/10/2024, to which no written response has been received. Communications sent to the new Data Protection Delegate of the Government of Cantabria are also

attached.)

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each control authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of the LOPDGDD, the Presidency of the Spanish Agency for Data Protection is competent to resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for Data Protection is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among data controllers and processors regarding their obligations, as well as addressing complaints filed by a data subject and investigating, as appropriate, the reasons for such complaints.

Correspondingly, Article 31 of the GDPR establishes the obligation of data controllers and processors to cooperate with the control authority that requests it in the performance of its functions. In cases where they have appointed a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with that authority.

In accordance with this regulation, following the procedure established in Article 65.4 of the LOPDGDD, prior to the admission of the complaint regarding the exercise of the rights regulated in Articles 15 to 22 of the GDPR, which gives rise to this procedure, the complaint was forwarded to the respondent party for analysis, requiring a response to this Agency within one month and to provide evidence of having given the claimant the due response.

The result of this forwarding did not allow for an understanding that the claims of the claimant were satisfied. Consequently, on November 26, 2024, for the purposes provided in Articles 64.1 and 65 of the LOPDGDD, the complaint was admitted for processing. This admission for processing determines the opening of the present procedure for the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, which states: "When the procedure refers exclusively to the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, it shall be initiated by an admission agreement, which shall be adopted in accordance with the provisions of Article 65 of this organic law.

In this case, the deadline for resolving the procedure shall be six months from the date on which the claimant was notified of the admission agreement. After this period, the interested party may consider their complaint accepted."

Article 58.2 of the GDPR grants the Spanish Agency for Data Protection a series of corrective powers to correct any infringement of the GDPR, including "ordering the controller or processor to address the requests for the exercise of the rights of the data subject under this Regulation."

III

Rights of Individuals Regarding Personal Data Protection

The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. These include the rights of access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to what is expressed in Recitals 59 and following of the GDPR.

In accordance with the provisions of these regulations, the data controller must establish means and mechanisms to facilitate the exercise of rights by the data subject, which shall be free of charge

(without prejudice to the provisions of Articles 12.5 and 15.3).

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of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the data subject, and to express its reasons in case it does not intend to comply with such request. The burden of proof for compliance with the duty to respond to the request for the exercise of rights made by the affected party lies with the data controller. The communication addressed to the data subject regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

IV

Right of Access

In accordance with the provisions of Article 15 of the GDPR and Article 13 of the LOPDGDD, "the data subject has the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed and, if so, the right of access to the personal data."

Regarding the right of access to personal data, according to the provisions of Article 13 of the LOPDGDD, when the exercise of the right refers to a large amount of data, the data controller may request the affected party to specify the "data or processing activities to which the request refers." The right will be considered granted if the data controller provides remote access to the data, with the request being deemed fulfilled (although the data subject may request the information referred to in the aspects provided in Article 15 of the GDPR).

The exercise of this right may be considered repetitive if it is exercised more than once within a six-month period, unless there is a legitimate reason for doing so. On the other hand, the request will be considered excessive when the affected party chooses a means other than the one offered that incurs a disproportionate cost, which must be borne by the affected party.

Like the other rights of the data subject, the right of access is a personal right. It allows the citizen to obtain information about the processing of their data, the possibility of obtaining a copy of the personal data concerning them that is being processed, as well as information, in particular, about the purposes of the processing, the categories of personal data concerned, the recipients or categories of recipients to whom the data may be communicated, the expected retention period or criteria for retention, the possibility of exercising other rights, the right to lodge a complaint with the supervisory authority, the available information about the source of the data (if it has not been obtained directly from the data subject), the existence of automated decisions, including profiling, and information about transfers of personal data to a third country or to an international organization. The possibility of obtaining a copy of the personal data being processed will not adversely affect the rights and freedoms of others.

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V

Conclusion

We will begin by stating that this claim will only consider whether the requested right, the right of access, has been addressed or not. The other issues raised by the claimant regarding the lack of response to the documents submitted by the claimant concerning a bullying case before the Ministry of Education of the Government of Cantabria and regarding the bullying protocol initiated and not concluded will not be taken into account in this resolution; however, this Agency reserves the right to open an investigation if deemed appropriate.

The claimant submitted two requests for access to the personal data of their minor child dated 28/06/2024 and 07/10/2024, respectively, which were sent to the Data Protection Delegate of

educational centers in Cantabria. Additionally, the last request was also sent to the institutional mailbox dpdcentrosdocentes@educacantabria.es, which was listed as the official contact channel in the Records of Treatment Activities. It should be noted that the claimant did not receive a response through either channel.

The respondent replied to this Agency on 08/04/2025, stating that the access request should have been directed to the Data Protection Delegate of the Government of Cantabria, not to that of educational centers, since, although it is true that the protocol was opened in an educational center, that center is private in nature, and the participation of the Ministry of Education, Vocational Training, and Universities is limited to the role conferred by the "Protocol of action for educational centers in the face of a possible situation of bullying," which is to receive information about the development of the protocol that the center's management communicates to the Educational Inspection Service and the Coexistence Unit. However, in this case, the action regarding which the claimant requests information should have been directed to the Data Protection Delegate of the Government of Cantabria. As previously established, the claimant sent a letter to the Data Protection Delegate of educational centers in Cantabria.

However, the respondent claims that regarding the complaint submitted by the claimant on 07/10/2024, the ***POSITION.1 of education of the educational center ***CENTER.1, B.B.B., contacted A.A.A. directly and provided the requested information, although not in writing. This party considered that since the requested information was provided directly, it was no longer necessary to respond to the request from the Spanish Agency for Data Protection, and therefore did not respond to the communication of October 15, understanding that the complaint had lost its purpose. However, the respondent does not provide any proof or document that certifies that such information was supplied verbally, and the claimant firmly denies that the requested information was provided verbally.

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The responding party also states that on March 31, 2025, A.A.A. again contacted the Data Protection Delegate of the Government of Cantabria, once more requesting data from the file, who is preparing the requested information to provide the corresponding written response. It should be noted that the complaining party has not again requested the right of access; the only thing they have requested is information regarding the right requested on June 28, 2024, and October 7, 2024, which has not yet been addressed (they provide emails exchanged with the Data Protection Delegate of the Government of Cantabria).

Despite the fact that during the processing of this procedure, the responding entity has replied to this Agency, it still fails to demonstrate that it has addressed the request made by the complaining party, sending them the required response to their request. Thus, it cannot be accepted that the response that should be given can be expressed merely as part of an administrative procedure, such as the submission of allegations regarding the present procedure, initiated precisely for not properly addressing the request in question.

The aforementioned regulations do not allow for the request to be overlooked as if it had not been made, leaving it without the response that the responsible parties are obliged to issue, even in the event that there are no data in the files or even in those cases where it does not meet the stipulated requirements, in which case the recipient of such a request is also obliged to require the correction of the observed deficiencies or, if applicable, to deny the request with justification indicating the reasons why the right in question cannot be considered.

Therefore, the request made obliges the responsible party to provide an express response in all cases, using any means that justifies the receipt of the response.

Since a copy of the necessary communication that must be directed to the complaining party informing them about the decision made regarding the exercise of rights request is not attached, it is appropriate to uphold the complaint that initiated this procedure.

In view of the cited provisions and other generally applicable regulations, the Presidency of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO UPHOLD the complaint filed by A.A.A. considering that the provisions of Article 15 of the GDPR have been infringed and to urge the DEPARTMENT OF EDUCATION, VOCATIONAL TRAINING, AND UNIVERSITIES OF CANTABRIA with NIF S3933002B, to send to the complaining party, within ten working days following the notification of this resolution, a certification addressing the requested right or denying it with justification indicating the reasons why it is not appropriate to address the request, in accordance with the provisions set forth in the body of this resolution. The actions taken as a result of this Resolution must be communicated to this Agency within the same period. Failure to comply with this resolution could result in the commission of an infringement of Article 83.6 of the GDPR, classified as very serious for the purposes of prescription in Article 72.1.m) of the LOPDGDD, which will be sanctioned in accordance with Article 58.2 of the GDPR.

SECOND: NOTIFY this resolution to A.A.A. and to the DEPARTMENT OF EDUCATION, VOCATIONAL TRAINING, AND UNIVERSITIES OF CANTABRIA.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Presidency of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. 1381-100425

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